

THE GENERAL ASSEMBLY OF PENNSYLVANIA

HOUSE BILL

No. 2186 Session of
2026

INTRODUCED BY INGLIS, KHAN, SCOTT, DAVIDSON, SOLOMON, ZIMMERMAN,
SMITH-WADE-EL, POWELL, FREEMAN, HANBIDGE, OTTEN, WAXMAN,
D. WILLIAMS, CIRESI, MAYES, CEPEDA-FREYTIZ, MADDEN,
K. HARRIS, CURRY, MAZZOCCO AND HOGAN, FEBRUARY 2, 2026

AS REPORTED FROM COMMITTEE ON HOUSING AND COMMUNITY DEVELOPMENT,
HOUSE OF REPRESENTATIVES, AS AMENDED, APRIL 13, 2026

AN ACT

1 Amending Title 53 (Municipalities Generally) of the Pennsylvania
2 Consolidated Statutes, providing for accessory dwelling
3 units.

4 The General Assembly of the Commonwealth of Pennsylvania
5 hereby enacts as follows:

6 Section 1. Title 53 of the Pennsylvania Consolidated
7 Statutes is amended by adding a chapter to read:

8 CHAPTER 63

9 ACCESSORY DWELLING UNITS

10 Sec.

11 6301. Definitions.

12 6302. Permitted use by right.

13 6303. Adoption of ordinance.

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14 6304 6303. Application.

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15 6305 6304. Attached or detached unit.

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16 6306 6305. Restrictions on accessory dwelling units.

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17 6307 6306. Conformity.

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1 § 6301. Definitions.

2 The following words and phrases when used in this chapter
3 shall have the meanings given to them in this section unless the
4 context clearly indicates otherwise:

5 "Accessory dwelling unit."

6 (1) A residential living unit:

7 (i) on a parcel or lot on which a ~~single family~~ <--
8 ~~dwelling~~ RESIDENTIAL BUILDING is present or may be <--
9 constructed;

10 (ii) that provides complete independent living
11 facilities for one or more individuals; and

12 (iii) that includes, but is not limited to:

13 (A) an attached or detached unit;

14 (B) a unit that is part of an accessory
15 structure, including a detached garage; or

16 (C) a unit that is not part of an expanded or
17 remodeled dwelling.

18 (2) The term does not include a recreational vehicle.

19 ~~"Dwelling unit." A residential living unit that provides <--~~
20 ~~complete independent living facilities for one or more~~
21 ~~individuals and includes permanent provisions for living,~~
22 ~~sleeping, eating, cooking and sanitation.~~

23 "Municipality." A city, borough, incorporated town,
24 township, home rule municipality, optional plan municipality or
25 optional charter municipality, located in this Commonwealth.

26 "Planned community." As defined under 68 Pa.C.S. § 5103
27 (relating to definitions).

28 "Recreational vehicle." As defined under 75 Pa.C.S. § 9602
29 (relating to definitions).

30 ~~"Single family detached dwelling unit." A freestanding <--~~

1 ~~building containing one dwelling unit for one family.~~

2 "RESIDENTIAL BUILDING." AS DEFINED IN SECTION 103 OF THE ACT <--
3 OF NOVEMBER 10, 1999 (P.L.491, NO.45), KNOWN AS THE PENNSYLVANIA
4 CONSTRUCTION CODE ACT.

5 § 6302. Permitted use by right.

6 An accessory dwelling unit shall be a permitted use by right
7 in every municipality WITH ZONING in which a ~~single family~~ <--
8 ~~detached dwelling unit~~ RESIDENTIAL BUILDING is a permitted use, <--
9 except that the permission may not supersede any deed
10 restriction, covenant or agreement restricting the use of land
11 or any master deed, bylaw or other document applicable to a
12 planned community.

13 ~~§ 6303. Adoption of ordinance.~~ <--

14 ~~A municipality shall adopt an ordinance to permit the~~
15 ~~development of at least one accessory dwelling unit for each~~
16 ~~single family detached dwelling unit, subject to reasonable~~
17 ~~regulation that is the least restrictive means of accomplishing~~
18 ~~the goal of the regulation.~~

19 ~~§ 6304~~ 6303. Application. <--

20 ~~(a) Process. The following application process shall apply~~ <--
21 ~~for an accessory dwelling unit:~~

22 ~~(1) A permit application for an accessory dwelling unit~~
23 ~~shall be considered and approved without discretionary review~~
24 ~~or a hearing.~~

25 ~~(2) The municipality shall approve or deny an~~
26 ~~application to create or serve an accessory dwelling unit~~
27 ~~within:~~

28 ~~(i) 30 days from the date the municipality receives~~
29 ~~the completed application; or~~

30 ~~(ii) 60 days if additional review is required.~~

~~(3) If the permit application to create or serve an accessory dwelling unit is submitted with a permit application to create or serve a new single family dwelling unit on the lot, the municipality may delay approving or denying the permit application for the accessory dwelling unit until the municipality approves or denies the permit application to create or serve the new single family dwelling unit.~~

~~(4) If the applicant requests a delay, the time period provided under paragraph (2) shall be tolled for the period of the delay.~~

~~(5) If the municipality has not approved or denied the completed application within the time period provided under paragraph (2), the application shall be deemed approved.~~

~~(6) A municipality may charge a fee, which shall not exceed \$250 in the aggregate, for costs incurred to review the permit application for the creation or service of an accessory dwelling unit.~~

~~(7) A municipality may not require a renewal for a permit for an accessory dwelling unit.~~

~~(b) Denial of application. If a municipality denies an application for an accessory dwelling unit, the municipality shall return in writing a full set of comments to the applicant with a list of items that are defective or deficient and a description of how the applicant may remedy the application.~~

~~CONSIDERATION OF APPLICATIONS AND INSPECTIONS SHALL BE AS PROVIDED UNDER SECTION 502 OF THE ACT OF NOVEMBER 10, 1999 (P.L.491, NO.45), KNOWN AS THE PENNSYLVANIA CONSTRUCTION CODE ACT.~~

~~§ 6305 6304. Attached or detached unit.~~

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Accessory dwelling units may be:

(1) attached to, or located within, a proposed or
existing ~~single family detached dwelling unit~~ RESIDENTIAL <--
BUILDING; or

(2) detached from a proposed or existing ~~single family~~ <--
~~detached dwelling unit~~ RESIDENTIAL BUILDING if located on the <--
same lot as the ~~dwelling~~ RESIDENTIAL BUILDING. <--

§ ~~6306~~ 6305. Restrictions on accessory dwelling units. <--

The following restrictions shall apply to an accessory
dwelling unit:

(1) A municipality may not establish a minimum net floor
area for an accessory dwelling unit of more than ~~150~~ 200 <--
square feet.

(2) A municipality may establish a maximum net floor
area for an accessory dwelling unit of not less than 50% of
the net floor area of the ~~single family detached dwelling~~ <--
~~unit or 1,250~~ RESIDENTIAL BUILDING OR 850 square feet, <--
whichever is less, or the entire floor plate of a basement or
attic.

(3) A municipality may establish a height limitation for
an accessory dwelling unit of no less than 25 feet or the
height of the ~~single family detached dwelling unit~~ <--
RESIDENTIAL BUILDING, whichever is less. <--

(4) A municipality may not establish a minimum allowance
for building cover or impervious cover for an accessory
dwelling unit of less than ~~600~~ 200 square feet. <--

(5) A municipality may not require an accessory dwelling
unit to meet storm water or water quality standards that a
~~single family detached dwelling unit~~ RESIDENTIAL BUILDING on <--
the same lot is not required to meet.

1 (6) A setback shall not be required for an existing
2 living area or accessory structure or for a structure
3 constructed in the same location and to the same dimensions
4 as an existing structure that is converted to an accessory
5 dwelling unit or for a portion of an accessory dwelling unit.
6 A setback of no more than four feet from the side and rear
7 lot lines may be required for an accessory dwelling unit that
8 is not converted from an existing structure or a new
9 structure constructed in the same location and to the same
10 dimensions as an existing structure.

11 (7) A zoning ordinance may not impose building material,
12 architectural design, color or similar requirements on an
13 accessory dwelling unit that are more restrictive than the
14 requirements applicable to the ~~single-family detached~~ <--
15 ~~dwelling~~ RESIDENTIAL BUILDING on the same lot. <--

16 (8) A municipality may not require a passageway between
17 an accessory dwelling unit and a ~~single-family detached~~ <--
18 ~~dwelling-unit~~ RESIDENTIAL BUILDING, except as required by the <--
19 applicable building or fire code.

20 (9) A municipality shall not condition the approval of
21 an accessory dwelling unit on the correction of a
22 nonconforming use, structure or lot or require the
23 installation of fire sprinklers in an accessory dwelling unit
24 if the sprinklers are not required for the ~~single-family~~ <--
25 ~~detached dwelling-unit~~ RESIDENTIAL BUILDING located on the <--
26 same lot.

27 ~~(10) A municipality, municipal authority or public~~ <--
28 ~~utility:~~

29 ~~(i) may not consider an accessory dwelling unit to~~
30 ~~be a new residential use for the purposes of calculating~~

~~connection fees or capacity charges for utilities, including water and sewer service, unless the accessory dwelling unit was constructed with a new single family dwelling unit on the same lot; and~~

~~(ii) shall not be required to install a new or separate utility connection directly to an accessory dwelling unit or impose a related connection fee or capacity charge.~~

~~(11) (10) A municipality may not require owner-occupancy requirements of either the single family detached dwelling unit RESIDENTIAL BUILDING or the accessory dwelling unit.~~ <--

~~(12) (11) A municipality may not require a familial relationship between the occupant of an accessory dwelling unit and the occupant of the single family detached dwelling unit RESIDENTIAL BUILDING.~~ <--

~~(13) (12) A municipality shall allow an accessory dwelling unit to be rented separate from the single family detached dwelling unit RESIDENTIAL BUILDING, but may prohibit the sale or other conveyance of an accessory dwelling UNIT separate from the single family dwelling unit RESIDENTIAL BUILDING.~~ <--

~~(14) (13) Additional off-street parking shall not be required for the construction of an accessory dwelling unit. If a garage, carport or covered parking structure is demolished in conjunction with the construction of an accessory dwelling unit or converted to an accessory dwelling unit, a municipality may not require those off-street parking spaces to be replaced.~~ <--

~~§ 6307 6306. Conformity.~~ <--

~~An accessory dwelling unit that conforms to the requirements~~

1 and limitations of this chapter shall be deemed to be:

2 (1) an accessory use or an accessory building and shall
3 not be considered to exceed the allowable density for the lot
4 upon which it is located; and

5 (2) a residential use that is consistent with the
6 existing general plan and zoning designations for the lot.

7 Section 2. This act shall take effect in 60 days.